

Participation Context Timeline (February–June 2024)

Scope and purpose

This timeline sets out the procedural and participation context between February and June 2024, focusing on the Claimant's ability to participate in post-judgment processes, including order drafting.

It is intended to provide context only, without argument or conclusions.

Chronology

28 February 2024 – Trial concludes

- Final hearing concludes after approximately five years of litigation.
- The Claimant becomes a litigant in person shortly thereafter.
- Formal participation measures that had operated during the trial phase cease.

Early March 2024 – Loss of legal representation and subsistence

- The Claimant no longer has the benefit of legal representation.
- Maintenance Pending Suit (MPS) payments cease.
- The Claimant begins contacting the court seeking assistance, enforcement of MPS, and support to remain on an equal footing.

7 March 2024 onwards – Requests linked to participation

- From 7 March 2024, the Claimant makes repeated written requests to the court seeking:
 - enforcement of the existing MPS order; and
 - assistance to enable participation in proceedings.
- These communications expressly link non-payment of MPS to:
 - inability to meet basic needs;
 - inability to obtain legal advice; and
 - inability to participate effectively.

March–April 2024 – Escalation of participation difficulties

- The Claimant continues to communicate difficulties engaging with the proceedings.
- The correspondence consistently frames MPS as necessary to preserve participation, not merely as a financial issue.
- The Claimant indicates deteriorating mental health and inability to function effectively without support.
- The court is informed of these difficulties in real time.

18 April 2024 – Judgment handed down

- Judgment is handed down on 18 April 2024.
- Requests relating to MPS enforcement and participation continue immediately thereafter.
- No hearing is listed to determine enforcement of MPS or participation measures.

Late April–early May 2024 – Post-judgment drafting phase begins

- The process of agreeing the final order commences.
- Drafts of the final order are circulated between the respondent’s legal team and the court.
- The Claimant states that she is unable to engage in drafting due to:
 - lack of subsistence;
 - lack of legal representation; and
 - acute mental health difficulties.

2–7 May 2024 – Attempted enforcement and continued non-engagement

- The Claimant attempts to pursue formal enforcement of MPS.
- No determination of enforcement is made.
- The Claimant reiterates that she cannot meaningfully participate in drafting or submissions without basic support.
- Drafting of the final order continues in parallel.

14 May 2024 – Introduction of unilateral changes

- A further draft of the final order is produced on 14 May 2024.
- This draft introduces:
 - significant changes to pension provision;
 - changes to the children’s education fund; and
 - a new provision remitting MPS arrears.
- This is the first point at which the Claimant is informed that certain pensions are said to be incapable of sharing under an English pension sharing order.

- These changes are introduced during a period when the Claimant has stated she is unable to participate.

24 May 2024 – Final order sealed

- The final order is sealed incorporating the post-14 May changes.
- No separate hearing is held to determine:
 - pension sharing feasibility;
 - control of the education fund; or
 - remission of MPS arrears.
- No determination of the Claimant's enforcement requests is recorded.

3 June 2024 – Slip-rule amendment

- A further order is approved under the slip rule.
- The substantive structure introduced on 14 May 2024 is retained.

Participation context (summary)

- Throughout **March–May 2024**, the Claimant repeatedly communicated that she was:
 - without legal representation;
 - without maintenance;
 - experiencing a mental health crisis; and
 - unable to engage effectively in post-judgment processes.
- The court was informed of these matters contemporaneously.

- The material changes identified in the Change Log were introduced during this period.